

Comment

Section 185 provides for exemption to the railway administration from the payment of tax to any local authority in respect of advertisement made on any part of the railway unless directed by the central Government.

186. Protection of action taken in good faith. – No suit, prosecution or other legal proceeding shall lie against the Central Government, any railway administration, a railway servant or any other person for anything which is in good faith done or intended to be done in pursuance of this Act or any rules or orders made there under.

Comment.

Section 186 provides that no suit, prosecution or other legal proceedings shall lie against the Central Government, railway administration, railway servant or any other person for anything done in good faith or intended to be done in pursuance of this Act.

187. Restriction on execution against railway property. – (1) No rolling stock, machinery, plant, tools, fittings, materials or effects used or provided by a railway administration for the purpose of traffic on its railway, or of its station or workshop, shall be liable to be taken in execution of any decree or order of any court or of any local authority or person having by law the power to attach or distrain property or otherwise to cause property to be taken in execution, without the previous sanction of the Central Government.

2) Nothing in sub-section (1) shall be construed to affect the authority of any court to attach the earnings of a railway in execution of a decree or order.

188. Railway servants to be public servants for the purposes of Chapter IX and Sec.409 of the Indian Penal Code-

1) Any railway servant, who is not a public servant within the meaning of Sec.21 of the Indian Penal Code(45 of 1860) shall be deemed to be a public servant for purposes of Chapter IX and Sec.409 of that code.

2) In the definition of 'legal remuneration' in Sec.161 of the Indian Penal Code(45 of 1860), the word "Government"

189. Railway servants not to engage in trade:-

A railway servant shall not-